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Case Name: *Brett Johnson v. County of Santa Clara, et al.*

Case No.: 24CV453950

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Intervenor Travelers Property Casualty Company of American (“Travelers”) moves under Code of Civil Procedure section 387(a) for leave to file its Complaint in Intervention to seek to recover amounts paid by Travelers to Plaintiff Brent Johnson (“Plaintiff”) for injuries sustained by Plaintiff when his truck was rear-ended by a bus driven by a bus driver employee of Defendant County of Santa Clara. Notice of Motion (the “Motion”) at 1:22-25 (filed: March 25, 2026).

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Analysis of the Motion

Under Code of Civil Procedure Section 387(a), Travelers is entitled to intervene in this case to seek to recover amounts paid by Travelers to Plaintiff for alleged injuries to his brain, left wrist, neck, and low back when Plaintiff was involved in a motor vehicle accident when his truck was allegedly rear-ended by a bus driven by a County of Santa Clara bus driver employee in stop-and-go traffic. C.C.P. § 387(a).

Travelers has an interest in this matter within the meaning of Section 387(a) because Travelers so far has paid \$115,666.57 for the workers’ compensation claim filed by Plaintiff arising out of his injuries sustained from the motor vehicle accident here. Declaration of attorney Susan E. Kirkgaard in Support of Motion at ¶ 3 (filed: March 25, 2026). Hence, Travelers asserts that it has a direct pecuniary interest in this case and that it has made a timely application in good faith to intervene in this action. Memo. of Points & Authorities In Support of Motion at 3:1-4:27.

No party argues otherwise. Indeed, no party has opposed the Motion at all, which the Court views as all parties conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Conclusion & Order

Accordingly, as the Motion is well supported by the law of Section 387(a) and by the undisputed facts set forth in the Supporting Declaration of attorney Kirkgaard, and as it is unopposed by anyone, the Court **GRANTS Travelers' Motion for Leave to File its Complaint in Intervention**. Specifically, the Court grants Travelers Leave to File its Complaint in Intervention **within 10 days of today**.

While the Court **GRANTS** Travelers' Motion, the Court also puts all parties (which now includes Travelers) and all counsel on **NOTICE** that there will be No Continuance and No Delay of the trial in this case that is set for **October 11, 2027**, which will start on schedule. So conduct your discovery and ready for trial accordingly.

SO ORDERED.

Date: September 11, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

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